

Justification for an Exception to Fair Opportunity Brand Name FAR 16.505(a)

1. Agency and contracting activity.

The Department of Homeland Security (DHS), the United States Coast Guard (USCG), Command, Control, Communications, Computers, Cyber, and Intelligence Service Center (C5ISC), and C5I Contracting and Procurement, Alexandria (CG-9141), located at 7323 Telegraph Road, VA 20598-7320 prepared this justification for an exception to fair opportunity.

2. Nature and/or description of the action being approved.

The USCG intends to award a Delivery Order (DO) for the renewal of brand name Veritas NetBackup hardware and software license subscription and maintenance support, pursuant to FAR 16.505 (a)(4)(i), restricting items peculiar to one manufacturer. This brand name requirement will result in a Firm-Fixed Price (FFP) DO issued among authorized Veritas resellers and service providers on the National Aeronautics and Space Administration (NASA) Solutions for Enterprise-Wide Procurement (SEWP V) Government-Wide Acquisition Contract (GWAC) vehicle.

3. Description of Supplies/Services.

The USCG C5ISC requires Veritas NetBackup hardware and software maintenance support which will allow the USCG to continue to utilize the management tools that provides comprehensive visibility into environments that are highly utilized on the Kearneysville data floor. This continued maintenance will also provide access to software upgrades, updates, security patches, and technical support.

The annual maintenance renewal will be utilized for a period of 12 months (01 April 2025 – 31 March 2026), at a total estimated of price of [REDACTED], using FY25 funds as detailed in the requirements table below.

Item Description	Part Number/ ID Number	Qty	PoP Start Date	PoP End Date	Estimated Unit Price	Estimated Total Price
NETBACKUP IT ANALYTICS PROTECTION WIN/LX 1 TB ONPREMISE STANDARD SUBSCRIPTION + VERIFIED SUPPORT LICENSE 12MO	31377-M0008	212	4/1/2025	3/31/2026	[REDACTED]	[REDACTED]
NETBACKUP IT ANALYTICS PROTECTION WIN/LX 1 TB ONPREMISE STANDARD SUBSCRIPTION + VERIFIED SUPPORT LICENSE 12MO	31377-M0008	350	4/1/2025	3/31/2026	[REDACTED]	[REDACTED]
VERIFIED SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP	23369-M1-2F	165	4/1/2025	3/31/2026	[REDACTED]	[REDACTED]

PLATFORM BASE COMPLETE ED WITH FLEXIBLE LICENSING XPLAT 1 FRONT END TB PLUS ONPREMISE STANDARD PERPETUAL LICENSE						
NETBACKUP APPLIANCE 5240 EXTENDED APPLIANCE SUPPORT 103TB EXTENDED APPLIANCE SUPPORT SERVICE RENEWAL 12MO	24264-M0014	1	4/1/2025	10/31/2025	██████	██████
NETBACKUP APPLIANCE 5240 103TB NON-RETURNABLE DISK OPTION SERVICE RENEWAL 12MO	16558-M0014	1	4/1/2025	10/31/2025	██████	██████
VERIFIED ESSENTIAL APPLIANCE SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP APPLIANCE 5240 103TB 4 1GB ETHERNET - 2 10GBT CU ETHERNET - 2 10GB SFP ETHERNET - 2 10GB SFP ETHERNET w/ ISCSI TOE - 4 8GB FIBRE CHANNEL STANDARD APPLIANCE	17968-M1-1F	1	4/1/2025	10/31/2025	██████	██████
VERIFIED ESSENTIAL APPLIANCE SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP APPLIANCE 5240 103TB 4 1GB ETHERNET - 2 10GBT CU ETHERNET - 10 8GB FIBRE CHANNEL STANDARD APPLIANCE	16539-M1-1F	1	4/1/2025	10/31/2025	██████	██████
NETBACKUP APPLIANCE 5240 103TB NON-RETURNABLE DISK OPTION SERVICE RENEWAL 12MO	16558-M0014	1	4/1/2025	10/31/2025	██████	██████
NETBACKUP APPLIANCE 5240 EXTENDED APPLIANCE SUPPORT 103TB EXTENDED APPLIANCE SUPPORT SERVICE RENEWAL 12MO	24264-M0014	1	4/1/2025	10/31/2025	██████	██████
NETBACKUP APPLIANCE 5250 140TB EXTENDED APPLIANCE SUPPORT RENEWAL 12MO	26866-M0014	1	4/1/2025	3/31/2026	██████	██████
NETBACKUP APPLIANCE 5250 140TB EXTENDED APPLIANCE SUPPORT RENEWAL 12MO	26866-M0014	1	4/1/2025	3/31/2026	██████	██████
NETBACKUP APPLIANCE 5250 140TB EXTENDED APPLIANCE SUPPORT RENEWAL 12MO	26866-M0014	1	4/1/2025	3/31/2026	██████	██████
NETBACKUP APPLIANCE 5250 140TB EXTENDED APPLIANCE SUPPORT RENEWAL 12MO	26866-M0014	1	4/1/2025	3/31/2026	██████	██████
NETBACKUP APPLIANCE 5250 140TB EXTENDED APPLIANCE SUPPORT RENEWAL 12MO	26866-M0014	1	4/1/2025	3/31/2026	██████	██████
NETBACKUP APPLIANCE 5250 140TB EXTENDED APPLIANCE SUPPORT RENEWAL 12MO	26866-M0014	1	4/1/2025	3/31/2026	██████	██████

NETBACKUP APPLIANCE 5250 140TB CUSTOMER DISK RETENTION OPTION SERVICE RENEWAL 12MO	27734-M0014	1	4/1/2025	3/31/2026	██████	██████
VERIFIED ESSENTIAL APPLIANCE SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP APPLIANCE 5250 140TB 4 1GB ENET - 6 25-10GB ENET - 4 16GB FC STANDARD APPLIANCE KIT	26687-M1-1F	1	4/1/2025	3/31/2026	██████	██████
VERIFIED ESSENTIAL APPLIANCE SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP APPLIANCE 5250 140TB 4 1GB ENET - 6 25-10GB ENET - 4 16GB FC STANDARD APPLIANCE KIT	26687-M1-1F	1	4/1/2025	3/31/2026	██████	██████
NETBACKUP APPLIANCE 5250 140TB CUSTOMER DISK RETENTION OPTION SERVICE RENEWAL 12MO	27734-M0014	1	4/1/2025	3/31/2026	██████	██████
NETBACKUP APPLIANCE 5250 140TB CUSTOMER DISK RETENTION OPTION SERVICE RENEWAL 12MO	27734-M0014	1	4/1/2025	3/31/2026	██████	██████
VERIFIED ESSENTIAL APPLIANCE SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP APPLIANCE 5250 140TB 4 1GB ENET - 6 25-10GB ENET - 4 16GB FC STANDARD APPLIANCE KIT	26687-M1-1F	1	4/1/2025	3/31/2026	██████	██████
NETBACKUP APPLIANCE 5250 140TB CUSTOMER DISK RETENTION OPTION SERVICE RENEWAL 12MO	27734-M0014	1	4/1/2025	3/31/2026	██████	██████
VERIFIED ESSENTIAL APPLIANCE SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP APPLIANCE 5250 140TB 4 1GB ENET - 6 25-10GB ENET - 4 16GB FC STANDARD APPLIANCE KIT	26687-M1-1F	1	4/1/2025	3/31/2026	██████	██████
VERIFIED ESSENTIAL APPLIANCE SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP APPLIANCE 5250 140TB 4 1GB ENET - 6 25-10GB ENET - 4 16GB FC STANDARD APPLIANCE KIT	26687-M1-1F	1	4/1/2025	3/31/2026	██████	██████
NETBACKUP APPLIANCE 5250 140TB CUSTOMER DISK RETENTION OPTION SERVICE RENEWAL 12MO	27734-M0014	1	4/1/2025	3/31/2026	██████	██████
NETBACKUP APPLIANCE 5250 140TB CUSTOMER DISK RETENTION OPTION SERVICE RENEWAL 12MO	27734-M0014	1	4/1/2025	3/31/2026	██████	██████
VERIFIED ESSENTIAL APPLIANCE SUPPORT 12 MONTHS RENEWAL	26687-M1-1F	1	4/1/2025	3/31/2026	██████	██████

FOR NETBACKUP APPLIANCE 5250 140TB 4 1GB ENET - 6 25-10GB ENET - 4 16GB FC STANDARD APPLIANCE KIT						
VERIFIED SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP PLATFORM BASE COMPLETE ED WITH FLEXIBLE LICENSING XPLAT 1 FRONT END TB PLUS ONPREMISE STANDARD PERPETUAL LICENSE	23369-M1-2F	100	4/1/2025	3/31/2026	██████	██████
VERIFIED SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP PLATFORM BASE COMPLETE ED WITH FLEXIBLE LICENSING XPLAT 1 FRONT END TB PLUS ONPREMISE STANDARD PERPETUAL LICENSE	23369-M1-2F	65	4/1/2025	3/31/2026	██████	██████
VERIFIED SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP PLATFORM BASE COMPLETE ED XPLAT 1 FRONT END TB ONPREMISE STANDARD PERPETUAL LICENSE	10915-M1-2F	70	4/1/2025	3/31/2026	██████	██████
VERIFIED ESSENTIAL APPLIANCE SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP APPLIANCE 5240 27TB 4 1GB ETHERNET - 2 10GB CU ETHERNET - 2 10GB SFP ETHERNET - 2 8GB FIBRE CHANNEL STANDARD APPLIANCE	16523-M1-1F	1	4/1/2025	10/31/2025	██████	██████
NETBACKUP APPLIANCE 5240 27TB NON-RETURNABLE DISK OPTION SERVICE RENEWAL 12MO	16556-M0014	1	4/1/2025	10/31/2025	██████	██████
NETBACKUP APPLIANCE 5240 EXTENDED APPLIANCE SUPPORT 27TB EXTENDED APPLIANCE SUPPORT SERVICE RENEWAL 12MO	24262-M0014	1	4/1/2025	10/31/2025	██████	██████
VERIFIED SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP PLATFORM BASE COMPLETE ED XPLAT 1 FRONT END TB ONPREMISE STANDARD PERPETUAL LICENSE	10915-M1-2F	10	4/1/2025	3/31/2026	██████	██████
VERIFIED SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP PLATFORM BASE COMPLETE ED XPLAT 1 FRONT END TB ONPREMISE STANDARD PERPETUAL LICENSE	10915-M1-2F	15	4/1/2025	3/31/2026	██████	██████
VERIFIED SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP PLATFORM BASE COMPLETE ED XPLAT 1 FRONT END TB ONPREMISE STANDARD PERPETUAL LICENSE	10915-M1-2F	15	4/1/2025	3/31/2026	██████	██████

VERIFIED SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP PLATFORM BASE COMPLETE ED XPLAT 1 FRONT END TB ONPREMISE STANDARD PERPETUAL LICENSE	10915-M1-2F	5	4/1/2025	3/31/2026	████████	████████
VERIFIED SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP PLATFORM BASE COMPLETE ED XPLAT 1 FRONT END TB ONPREMISE STANDARD PERPETUAL LICENSE	10915-M1-2F	62	4/1/2025	3/31/2026	████████	████████
VERIFIED SUPPORT 12 MONTHS RENEWAL FOR NETBACKUP PLATFORM BASE COMPLETE ED XPLAT 1 FRONT END TB ONPREMISE STANDARD PERPETUAL LICENSE	10915-M1-2F	20	4/1/2025	3/31/2026	████████	████████
Estimated Total Firm Fixed Price: ██████████						

4. Identify the exception to fair opportunity and supporting rationale.

Justification for Brand Name Exception to Fair Opportunity -

The statutory authority permitting exception to fair opportunity is FAR 16.505(b)(2)(i)(B). “Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.” This requirement will be procuring items peculiar to one manufacturer on a brand name basis in accordance with FAR 16.505(a)(4).

The Veritas NetBackup software is proprietary and is currently supporting the USCG network infrastructure. Veritas NetBackup provides various robust products that offer a variety of features which are designed to speed backup and recovery of various ██████████ systems running on USCG Data Centers and Hub Sites, and integrate backup with additional processes. Accelerator features reduce the time needed to complete a backup by eliminating the scan to determine file change percentages, maximizing client-side duplication, and then building a full backup image. NetBackup can search through an entire backup for any information needed for electronic discovery and compliance, places legal holds on the files to prevent expiration, protects sensitive information and ensure compliance centrally by encrypting endpoints, files and emails. Veritas is critical to the ability of the C5I Service Center Infrastructure Services Division (ISD) ability to sustain server and cloud operations. Without the maintenance the USCG will lose the ability to receive updates and manufacturer support which would cause systems to be out of compliance, experience vulnerabilities, and could extend downtimes of ██████████ systems. This would subject the systems to external infiltration, Command Cyber Readiness Inspection (CCRI) and other security audit failures, and risk of being removed from the network. As such, no other brand can provide these proprietary software updates as no other brand can provide the required and necessary maintenance support as different software is not compatible with each other. The maintenance support described in this action must be provided by an authorized reseller and maintenance service provider. Additionally, the support described in this action must be registered with the manufacturer.

Due to Veritas NetBackup's proprietary nature, the contracting strategy that will provide the Government with the best value is competing the brand name Veritas licenses and software maintenance renewal.

5. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

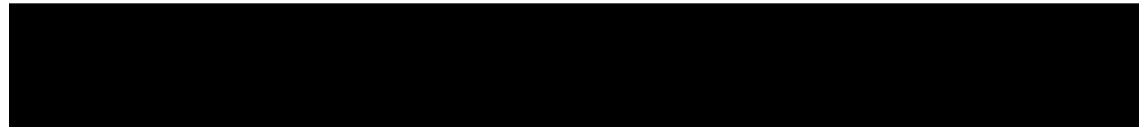
The Contracting Officer determines that the anticipated cost will be fair and reasonable based on adequate price competition between two or more responsible offerors. There are multiple authorized and certified Veritas resellers on NASA SEWP. The Contracting Officer will also perform a price analysis to determine that the price at the time of award still represents the overall best value for the Government and is fair and reasonable.

6. A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.

Currently, Veritas NetBackup software is proprietary and is utilized on the USCG network. The availability of multiple resellers of Veritas products ensures competition. The USCG is constantly monitoring the marketplace and evaluating the USCG backup systems to discover viable alternatives to Veritas NetBackup. Should viable alternatives be discovered the requirement for a new USCG backup system would be competed.

7. Contracting Officer's Certification.

I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.

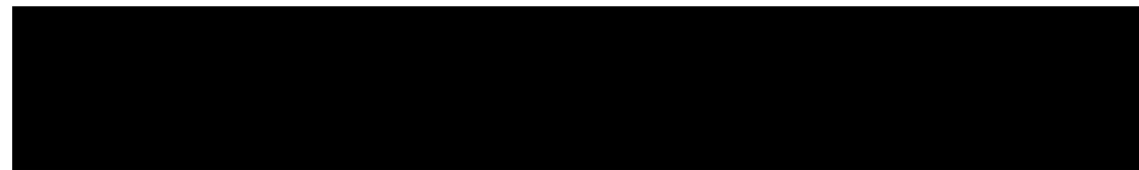


Contracting Officer

Date

8. Technical/Requirements Personnel Certification.

I certify that this requirement meets the Government's minimum need and that the supporting data, which forms a basis for the justification, is accurate and complete.



Technical Representative

Date

Approval:

[Redacted Signature]

[Redacted Title]

Procurement Activity Advocate for Competition (PAAC)

Date